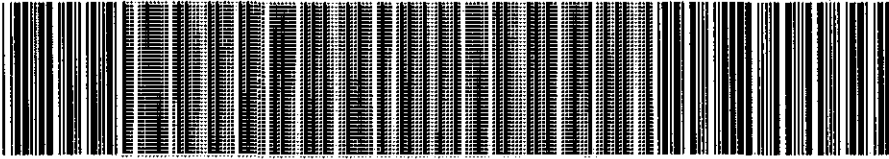


EWR D&I ANNOTATION



PAN-TERROREX-00001DP95-3607

Artemis # : 000001L092001DP95

Record Created Date : 06/18/2010

Printed Date : 06/21/2010

Description : DI09-096. SEQ ID 95. 2009 Q2. INCIDENT TAKES PLACE ON A PENNSYLVANIA STATE HWY AND INVOLVES A 2007 COBALT. POLICE REPORT STATES VEHICLE TRAVELLED ACROSS THE CENTER LINE AND HIT A POLE WITH THE FRONT PASSENGER SIDE DOOR. LAWSUIT ALLEGES THAT THE BRAKING SYSTEM MALFUNCTIONED CAUSING THE ACCIDENT. COULD ALSO BE A STEERING RELATED ISSUE. LAWSUIT STATES THAT DRIVER APPLIED BRAKES SECONDS BEFORE THE ACCIDENT AND THE REAR WHEELS LOCKED UP PREMATURELY WHICH CAUSED THE VEHICLE TO ROTATE. VOQ-6. FR-4. PURSUITS-3 (STEERING RELATED). TSB-0. RECALLS-1 (POWER STEERING). *RM

Print

Close



U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

1200 New Jersey Avenue SE.
Washington, DC 20590

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

December 16, 2009

Ms. Gay P. Kent
General Motors Corp.
Mail Code 480-210-G11
30001 Van Dyke
Warren, MI 48090

NVS-217kb
DI09-096

Dear Ms. Kent:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors Corp. (GM) in its light early warning report from 2nd quarter of 2009. We are writing to request additional information about the following incidents:

Selected Death and Injury Incidents	
For Reporting Category: L	
For the following Sequence IDs: 3, 7, 15, 39, 63, 78, 81, 82, 85, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 98, 100, 101, 103, 105, 106, 107, 108, 109, 110, 131, 137, 145, 146, 148, 149, 158, 167, 168, 178, 209, 216, 219, 231, 243, 253, 254, 255, 256, 257, 258, 259, 261, 263, 264, 266, 270, 271, 276, 281, 282, 288, 289, 290, 291, 292, 293, 297, 299, 300, 311, 312, 327, 338, 339, 341, 343, 344, 345, 346, 348, 349, 351, 352, 354, 370, 382, 390, 391	

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the above table.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to GM.

Vehicle: the vehicle produced by GM that is identified in the claim or notice.

Tire: the tire produced by GM that is identified in the claim or notice.



Equipment: the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM's custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM's response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, 1200 New Jersey Avenue, S.E., Washington, D.C. 20590. GM is required to submit two copies of the documents containing allegedly confidential information (except only one copy of blueprints) and one copy of the documents from which information claimed to be confidential has been deleted. Please remember that the words "CONFIDENTIAL BUSINESS INFORMATION" must appear at the top of each page containing information claimed to be confidential, and the information must be clearly identified in accordance with 5 U.S.C. § 512.6. If you submit a request for confidentiality for all or part of your response to this letter, that is in an electronic format (e.g., CD-ROM), your request and associated submission must conform to the new

requirements in NHTSA's Confidential Business Information Rule regarding submissions in electronic formats (49CFR 512.(c)). See Federal Register, volume 72, page 59434 (October 19, 2007).

12/22/09

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **January 22, 2010**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,



Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement

11 February 2010

Ms. Christina Morgan, Chief
Early Warning Division, NVS-217
Office of Defects Investigation
National Highway Traffic Safety Administration
1200 New Jersey Ave., S.E.
Washington, DC 20590

NVS-217kb
DI09-096

Dear Ms. Morgan:

This is General Motors' (GM) response to your inquiry dated December 16th, 2009 regarding certain death and injury incidents reported by GM in its light vehicle early warning report from the 2nd quarter of 2009.

GM's response is comprised of 88 disks for the incidents that are the subject of DI09-096.

Attachment "A" includes instructions for navigating the disk. Each disk, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 3 18605620-675350 and 2009 BUICK ENCLAVE. When the disk is launched, this identification number appears again along with all of the documents on the disk (including photographs and videos, if applicable) listed under "Filename." The first document listed under Filename is an index with the Request and Responses, e.g., identified as 3 18605620-675350_00_Request and Responses. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the Inquiry and Response in the index
for the disk are as follows:

DI09-096
3 18605620-675350
2009 BUICK ENCLAVE

Request for Information:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**



Response: See attached document.

2. **Provide a copy of the Police Accident Report.**

Response: See attached documents and photographs.

The remaining document listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

3 18605620-675350 **_01_001** - is the first document responsive to Inquiry no. 1.

3 18605620-675350 **_02_001** - is the first document responsive to Inquiry no. 2.

Your inquiries and our corresponding replies are as follows:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**

Response: See attached document.

The table below lists the incident that is the subject of DI09-066, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR) or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim." PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice." Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further.

(88 Vehicles from the Light Vehicle Template)		
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
3	5GAER23D69J [REDACTED]	NISM
7	UNKNOWN	NISM
15	5GADS13S142 [REDACTED]	NISM
39	1G6DU57V090 [REDACTED]	LIT
63	UNKNOWN	NISM
78	1G1AL52F957 [REDACTED]	NISM
81	1G1AK52F257 [REDACTED]	NISM
82	1G1AK55F167 [REDACTED]	NISM
85	1G1AK15F467 [REDACTED]	NISM
87	1G1AK55F267 [REDACTED]	NISM

SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
88	1G1AM15B367	NISM
89	1G1AL15FX67	NISM
90	1G1AK15F367	NISM
91	1G1AL58F977	NISM
92	1G1AK15F077	NISM
93	1G1AK55F577	NISM
94	1G1AK15F477	NISM
95	1G1AK55F577	LIT
96	1G1AK15F077	NISM
98	1G1AK58FX77	NISM
100	1G1AK55FX77	NISM
101	1G1AK15F477	NISM
103	1G1AK18F887	NISM
105	1G1AL58F287	NISM
106	1G1AK18F187	NISM
107	1G1AL58F987	NISM
108	1G1AK58F987	NISM
109	1G1AL58F987	NISM
110	1G1AT58H097	NISM
131	3GNDA23P76S	NISM
137	3GNDA13D48S	NISM
145	2G1WF52E049	NISM
146	2G1WF52E249	NISM
148	2G1WH52K049	NISM
149	2G1WH52K049	NISM
158	2G1WT58N279	NISM
167	2G1WT57K791	NISM
168	2G1WC57M591	NISM
178	1G1ZG57B39F	NISM
209	1GCEK24009Z	NISM
216	1GCHK29K57E	NISM
219	1GBJC34K78E	NISM
231	1GNFC16047J	NISM
243	1GNFK33059R	NISM
253	1GNDS13S642	NISM
254	1GNDT13S052	NISM
255	1GNDT13S052	NISM
256	1GNDS13SX52	NISM
257	1GNDT13S852	NISM
258	1GNDT13S052	NISM
259	1GNDT13S352	NISM
251	1GNDT13S662	NISM
263	1GNDT13S682	NISM
264	1GNDT13S882	NISM
266	1GNDS33S892	NISM
270	1GNES16S866	NISM
271	1GNEV23D29S	NISM

SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
276	1GNDU03E64D [REDACTED]	NISM
281	1GKEV23D59J [REDACTED]	NISM
282	1GKEV23D99J [REDACTED]	NISM
288	UNKNOWN	NISM
289	1GKDS13S442 [REDACTED]	NISM
290	1GKDT13S442 [REDACTED]	NISM
291	1GKDT13S552 [REDACTED]	NISM
292	1GKDS13S962 [REDACTED]	NISM
293	1GKDS13S462 [REDACTED]	NISM
297	1GKET16S956 [REDACTED]	NISM
299	1GKES12S046 [REDACTED]	NISM
300	1GKES12S956 [REDACTED]	NISM
311	3GTEC13C48G [REDACTED]	NISM
312	3GTEK13378G [REDACTED]	NISM
327	5GTDN136568 [REDACTED]	NISM
338	1G2ZF55B264 [REDACTED]	NISM
339	1G2ZF55B064 [REDACTED]	NISM
341	1G2ZG558364 [REDACTED]	NISM
343	1G2ZH18N374 [REDACTED]	NISM
344	1G2ZG58B574 [REDACTED]	NISM
345	1G2ZH57N584 [REDACTED]	NISM
346	1G2ZG57B384 [REDACTED]	NISM
348	1G2ZH57N684 [REDACTED]	NISM
349	1G2ZF57B584 [REDACTED]	NISM
351	1G2ZJ57B494 [REDACTED]	NISM
352	1G2ZH36N994 [REDACTED]	NISM
354	6G2EC57Y19L [REDACTED]	NISM
370	2G2WP552881 [REDACTED]	NISM
382	5S3ET13S662 [REDACTED]	NISM
390	5GZER13737J [REDACTED]	NISM
391	5GZEV23748J [REDACTED]	NISM

2. **Provide a copy of the Police Accident Report.**

Response: If available, see attached document(s) and photograph(s) on the enclosed disk(s).

3. **At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.**

Response: GM opts not to respond.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs, and evaluations by attorneys (and by consultants, claims analysts, investigators and engineers working at the request of attorneys). GM is producing

responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,

A handwritten signature in black ink, appearing to read 'G. Kent', with a stylized flourish at the end.

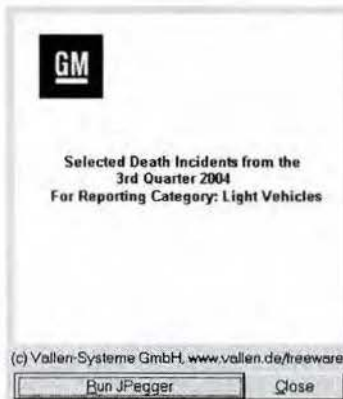
Gay P. Kent,
Director, Product Investigations
and Safety Regulations

Enclosures: 88 Disks
Attachment A

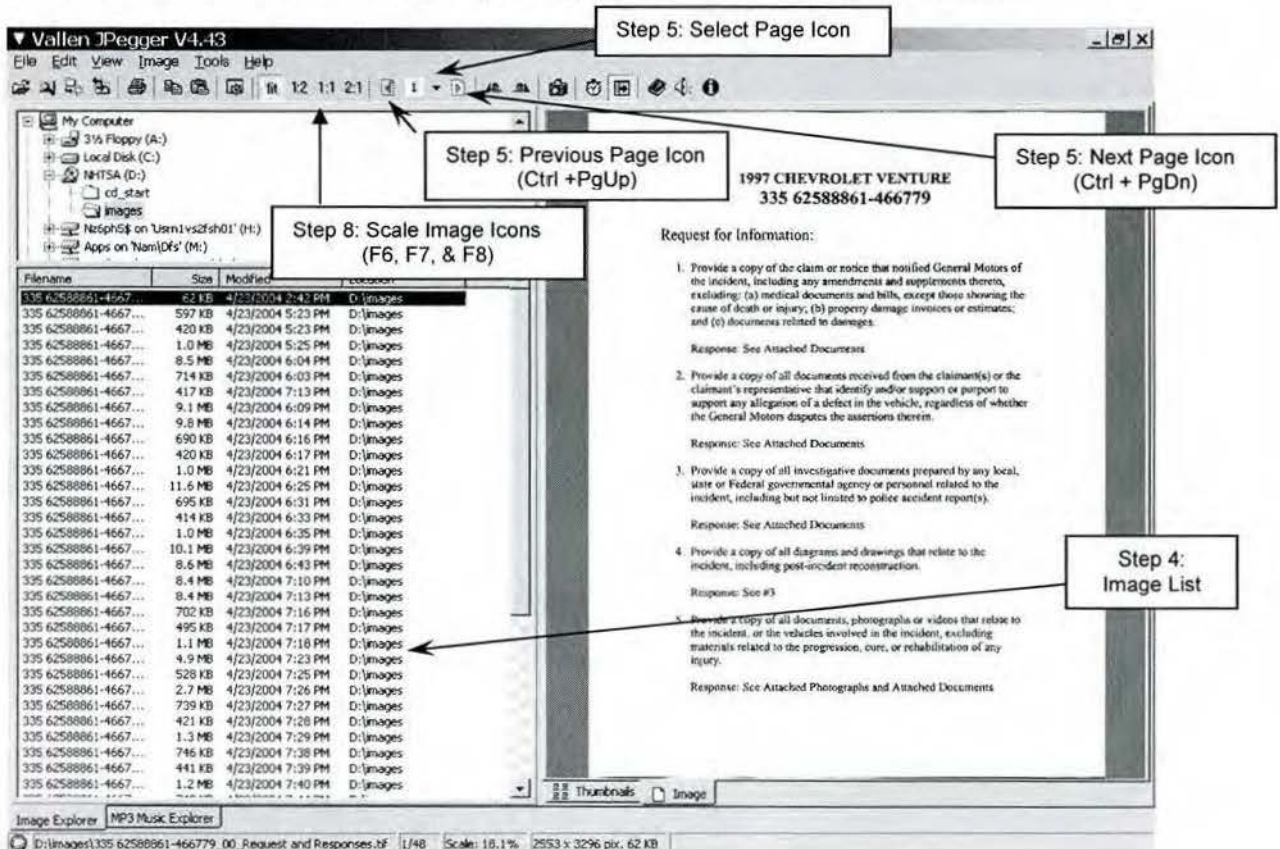
Attachment A

Instructions for using Disk Viewer

1. Insert the disk into the disk ROM drive; the disk will open automatically.
2. Click the "Run JPegger" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.



5. Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl + PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl + PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages)
6. By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl + PgDn** or **Ctrl + PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
7. Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next page), or to view the next document within the file list (Next Image).
8. If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7**, and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

982.2(b)(1)

FOR COURT USE ONLY

ATTORNEY OR PARTY WITHOUT ATTORNEY: Name, title, address and e-mail
 ERIC D. PARIS, ESQ., S/B# 147836
 LAW OFFICES OF ERIC D. PARIS & ASSOCIATES
 281 S. THOMAS STREET
 SUITE 403
 POMONA, CALIFORNIA 91766
 TELEPHONE NO. 909-469-5127 FAX NO. 909-469-5126
 ATTORNEY'S BAR NO. PLAINTIFF'S

WESTERN DISTRICT OF CALIFORNIA, DISTRICT AND BRANCH COURTS, IF ANY
 SUPERIOR COURT FOR THE STATE OF CALIFORNIA
 INDIO COUNTY

CASE NAME: CARDONA V. CHEVROLET

CIVIL CASE COVER SHEET

Complex Case Designation
☐ Counter ☐ Answer
☐ Limited ☒ Unlimited
 Filed with first appearance by defendant
 (Cal. Rules of Court, rule 181.1)

PLEASE COMPLETE ALL FIVE (5) SECTIONS BELOW

1. Check one box below for the case type that best describes this case:

Auto Tort
☒ Auto (22)
☐ Other PIP/NOPI (Personal Injury/Property Damage/Wrongful Death) Tort
☐ Assault (24)
☐ Product liability (24)
☐ Medical malpractice (45)
☐ Other PIP/NOPI (23)
 Non-PIP/NOPI (Other) Tort
☐ Business tort/breach of business practice (32)
☐ Child rights (e.g., discrimination, false arrest) (55)
☐ Defamation (e.g., slander, libel) (12)
☐ Fraud (18)
☐ Intellectual property (19)
☐ Professional negligence (e.g., legal malpractice) (25)
☐ Other non-PIP/NOPI tort (26)
 Employment
☐ Wrongful termination (36)
☐ Other employment (19)
☐ Breach of contract/employment (28)
☐ Collection (e.g., money owed, open book account) (28)
☐ Insurance coverage (14)
☐ Other contract (37)
 Real Property
☐ Eminent domain/tortious condemnation (14)
☐ Wrongful eviction (33)
☐ Other real property (e.g., water right) (38)
 Unlawful Detainer
☐ Commercial (31)
☐ Residential (32)
☐ Drugs (34)
 Adversarial Review
☐ Asset forfeiture (20)
☐ Petition for annulment/void (11)
☐ Will of decedent (22)
☐ Other judicial review (29)
 Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 180B-181C)
☐ Arbitration/Trial regulation (23)
☐ Construction defect (13)
☐ Claims insurance coverage tort (23)

2. This case ☒ is ☐ is not complex under rule 180C of the California Rules relating to complex judicial management.

a. ☒ Large number of separately represented parties d. ☒ Large number of issues that will be time-consuming to resolve e. ☐ Consideration in other counties f. ☐ Substantial post-trial issues

3. Type of remedies sought (check all that apply):
 a. ☒ Monetary b. ☐ Nonmonetary, declaratory or injunctive relief c. ☐ Other

4. Number of causes of action (specify): FIVE

5. This case ☐ is ☒ is not a class action suit.

Date: JULY 3, 2003

ERIC D. PARIS, ESQ., S/B# 147836
 (Type on next page)

NOTICE
 • Plaintiff must file this cover sheet with the first paper filed in the action or proceeding (see under the Probate, Family, or Welfare and Institutions Codes) (Cal. Rules of Court, rule 180.1).
 • File this cover sheet in addition to any cover sheet required by local court rule.
 • If this case is complex under rule 180C at seq. of the California Rules of Court, you must enter parties to the action or proceeding.
 • Unless this is a complex case, this cover sheet shall be used for statistical purposes only.

FROM: Adopted by the Monterey County Superior Court of California
 982.2(b)(1) (Rev. January 1, 2008)

CIVIL CASE COVER SHEET

Next Image
 Previous Image
 Next page Ctrl+PgDn
 Previous page Ctrl+PgUp
 Full screen image Ctrl+F11
 Slide show F10
 Fit Scale to fit F5
 Scale 50% F6
 Scale 100% F7
 Scale 200% F8
 Rotate left Ctrl+Alt+L
 Rotate right Ctrl+Alt+R
 Rotate by 180°
 Copy to clipboard
 Copy file to... Ctrl+C
 Move file to... Ctrl+X
 Rename file... F2
 Delete file... Del
 Exif/Inside Information...
 Preferences... Ctrl+H

Step 7: Next File (Image)

Step 7: Next page

Step 8: Scale Image

Step 7: Image Properties

DI09-096
95 278516756 – 670250
2007 CHEVROLET COBALT

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: GM opts not to respond.

IN THE COURT OF COMMON PLEAS OF BRADFORD COUNTY, PENNSYLVANIA

<u>VIRGIL LIBBY</u> , Executor of the	:	
Estate of <u>Jean G. Libby</u>	:	CIVIL ACTION – LAW
Plaintiff	:	
Vs.	:	NO:
	:	
GENERAL MOTORS, INC. and	:	
FRONTIER COMMUNICATIONS, INC.	:	
Defendants	:	JURY TRIAL DEMANDED

COMPLAINT

1. Plaintiff, Virgil Libby, is an adult individual residing at RR3, Towanda, Pennsylvania.
2. Defendant, General Motors, Inc., is a Michigan corporation with a principal place of business at 300 Renaissance Center, Detroit, Michigan 48265-3000.
3. Defendant, Frontier Communications, Inc., the successor company to the Commonwealth Telephone Company is a Connecticut corporation with a principal place of business at 3 High Ridge Park Stamford, Connecticut 06905-1390.
4. Virgil Libby, is the Executor of the Estate of his deceased wife, Jean G. Libby, pursuant to a Short Certificate issued to him by the Bradford County Register of Wills on February 4, 2009.
5. On December 4, 2007 Jean G. Libby was operating a 2007 Chevrolet Cobalt passenger vehicle, Vehicle Identification Number 1G1AK55F577172737, manufactured by the Defendant, General Motors, Inc., in Bradford County on Route 414 traveling east toward an intersection with Route 220.
6. At that time and place the steering system of Jean G. Libby's vehicle malfunctioned and she lost control of the vehicle traveling across the center line of Route 414, leaving the roadway on the north side of the highway and striking a utility pole owned and

maintained by Defendant, Frontier Communications, Inc., which was 8 feet and 9 inches north of the western edge of Route 414.

7. On information and belief, said telephone pole was placed at this location in 1987.

8. Jean G. Libby sustained serious injuries in this collision, and died later that day.

COUNT I – Wrongful Death Act Claim

**Plaintiff, Virgil Libby vs. Defendants, General Motors, Inc. and
Frontier Communications, Inc.**

9. Plaintiff hereby incorporates herein by reference paragraphs 1-8 above in their entirety.

10. The Plaintiff brings this claim for Wrongful Death pursuant to the provisions of 42 Pa. C.S.A. § 8301.

11. Plaintiff's decedent, Jean G. Libby, left surviving her husband, the Plaintiff herein, and her son, Mark Libby, both of whom reside at RR3, Towanda, Pennsylvania, and both of whom are entitled to recover wrongful death damages as a result of her death.

12. As a result of the death of Jean G. Libby, expenses were incurred which include funeral and related expenses, burial expenses and Estate administration expenses, recovery for which is sought in this action.

13. As a result of the death of Jean G. Libby Plaintiff and his son, Mark Libby, have suffered the loss of her services and support that they would have received from her and her earnings during her lifetime, including the loss of her companionship, comfort and society, recovery for which is sought in this action.

14. No other action for wrongful death of Jean G. Libby has been commenced against these Defendants.

WHEREFORE, Plaintiff demands that judgment be entered against the Defendants and in his favor in an amount exceeding the jurisdictional requirements for compulsory arbitration.

COUNT II – Survival Act Claim

Plaintiff, Virgil Libby vs. Defendants, General Motors, Inc. and Frontier Communications, Inc.

15. Plaintiff hereby incorporates herein by reference paragraphs 1-8 above in their entirety.

16. Plaintiff brings this action on behalf of the Estate of Jean G. Libby pursuant to 42 Pa. C.S.A. § 8302.

17. Jean G. Libby was employed at the time of her death, and her Estate seeks recovery in this action for her lost wages throughout her life expectancy.

WHEREFORE, Plaintiff demands judgment in his favor and against the Defendants in an amount exceeding the jurisdictional requirements for compulsory arbitration

COUNT III – Strict Liability

Plaintiff, Virgil Libby vs. Defendant, General Motors, Inc.

18. Plaintiff hereby incorporates herein by reference paragraphs 1-17 above in their entirety.

19. Seconds before the crash, when Jean G. Libby applied the brakes on her vehicle, the rear wheels locked before the front wheels, causing the vehicle to rotate and causing Jean G. Libby to lose control of the vehicle.

20. This premature rear wheel lock up was caused by a malfunction defect in the vehicle's braking system.

21. This defect existed when Defendant, General Motors, Inc., initially sold the vehicle and transferred possession of it.

22. This defect rendered the vehicle unsafe for its intended use.

23. This defect was a direct factual cause of the collision and of Jean G. Libby's death.

WHEREFORE, Plaintiff demands judgment in his favor and against the Defendant, General Motors, Inc., for an amount exceeding the jurisdictional requirements for compulsory arbitration.

COUNT IV – Negligence

Plaintiff, Virgil Libby vs. Defendant, Frontier Communications, Inc.

24. Plaintiff hereby incorporates herein by reference paragraphs 1-17 above in their entirety.

25. Defendant, Frontier Communications, Inc., owed a legal duty to users of the highway, including the Plaintiff, to place its utility pole far enough away from Route 414 that it would not constitute an unreasonable danger to motorists whose vehicles left the highway.

26. Defendant, Frontier Communications, Inc., breached this legal duty and was negligent in that:

(a.) This utility pole was located on the outside of a curve to the right of Jean G. Libby and was in a high vulnerability area for being struck by vehicles leaving the roadway.

(b.). It was foreseeable for Defendant, Frontier Communications, Inc., for years prior to this crash that motorists could lose control of their vehicles, leave the roadway and strike the utility pole at that location.

(c.) At the time this pole was installed professional standards recommended that utility poles be placed at least 30 feet from the edge of highways.

(d.) At the time this pole was installed Pennsylvania Department of Transportation specifications for this grade of highway required that utility poles be located at least eighteen feet from the edge of this grade of highway.

(e.) This eighteen foot unobstructed area would have provided a clear zone for vehicles leaving the roadway to stop, take evasive action to avoid colliding with a utility pole or reduce the speed of their vehicles and mitigate the severity of the impact.

(f.) The placement of this pole, eight feet and nine inches from the northern edge of Route 414 made it unreasonably dangerous.

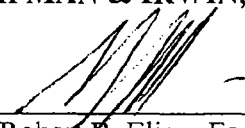
(g.) Had the utility pole been at least eighteen feet from the northern edge of Route 414 **Jean G. Libby's** vehicle would not have struck it.

27. Defendant, Frontier Communications, Inc.'s negligence was a direct factual cause of **Jean G. Libby's** death.

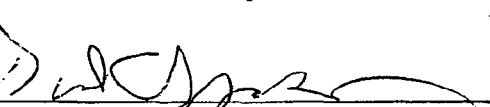
WHEREFORE, Plaintiff demands judgment in his favor and against the Defendant, Frontier Communications, Inc., for an amount exceeding the jurisdictional requirements for compulsory arbitration.

Respectfully submitted,

**ELION, WAYNE, GRIECO, CARLUCCI,
SHIPMAN & IRWIN, P.C.**

By: 

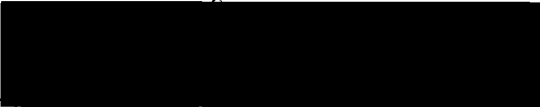
Robert B. Elion, Esquire ID # 21030

By: 

David C. Shipman, Esquire ID#22016
Attorneys for Plaintiff
125 East Third Street
Williamsport, PA 17701
(570) 326-2443

VERIFICATION

I verify that the facts set forth in the foregoing *Complaint* are true and correct. I understand that false statements herein are made subject to the penalties of 18 Pa.C.S. Section 4904, relating to unsworn falsification to authorities.


Administrator of the
Estate of 

Dated: 3-16-09

COMMONWEALTH OF PENNSYLVANIA
POLICE CRASH REPORTING FORMFAT
Page

Crash Number

AA 500 1

Case Closed
☒ Yes ☐ NoReportable Crash
☒ Yes ☐ No

01

1327884

Police Agency Data	Incident Number 05-0628150	Police Agency 68P05	Patrol Zone 008
	Agency Name PENNSYLVANIA STATE POLICE	Predinct TOWANDA/3250	Investigation Date (MM-DD-YYYY) 12-04-2007
Crash Data	Dispatch Time (mil) 1500	Arrival Time (mil) 1514	Investigator TPR. JAMES J. DUGHI
	Badge Number 10572	Reviewer Col. Kenneth H. Martin	Approval Date (MM-DD-YYYY) 01-01-2008
Crash Data	County 08	County Name BRADFORD	Municipality 406
	Municipality Name MONROETON BOROUGH	Crash Date (MM-DD-YYYY) 12-04-2007	Crash Time (mil) 1458
Crash Data	No of Units 01	People 01	Injured 00
	Killed* 01	*If > 00 complete Form F	Day of Week ☐ Sun ☐ Thu ☐ Mon ☐ Fri ☒ Tue ☐ Sat ☐ Wed ☐ Unk
Loc Type	Workzone (If Yes, Complete Form M, Section 29) ☐ Yes ☒ No	School Bus Related ☐ Yes ☒ No	School Zone Related ☐ Yes ☒ No
	Notify PENNDOT Maintenance ☐ Yes ☒ No	Intersection Type ☒ Midblock ☐ 4 Way Intersection ☐ "Y" Intersection ☐ Multi-Leg Intersection ☐ Off Ramp ☐ Railroad Crossing ☐ "T" Intersection ☐ Traffic Circle/Round About ☐ On Ramp ☐ Crossover ☐ Other	*Special Location 00 * See Overlay
Principal Road	Route Number 0414	Segment (Optional)	Travel Lanes 02
	Speed Limit 45	Street Name	Street Ending
Principal Road	Route Signing ☐ Interstate (Not Turnpike) ☐ Turnpike (East/West) ☐ Turnpike Spur ☒ State Highway	County Road	Local Road or Street
	Private Road	Other/Unknown	Orientation ☐ North ☐ South ☒ East ☐ West ☐ Unknown
Intersecting Road	Route Number	Segment (Optional)	Travel Lanes
	Speed Limit	Street Name	Street Ending
Intersecting Road	Route Signing ☐ Interstate (Not Turnpike) ☐ Turnpike (East/West) ☐ Turnpike Spur ☐ State Highway	County Road	Local Road or Street
	Private Road	Other/Unknown	Orientation ☐ North ☐ South ☐ East ☐ West ☐ Unknown
Distance From Landmark	Landmark 1 Intersecting Rt Num Or Mile Post 0220	Or Segment Marker	St Ending
	Or Intersecting Street Name	Landmark 2 Intersecting Rt Num Or Mile Post 0406	Or Segment Marker
Distance From Landmark	Or Intersecting Street Name	St Ending	Ramp Use Only ☐ North ☐ South ☐ East ☐ West
	Feet 00100	Or Miles	Distance From Crash Scene to Landmark 1 (For Crash between Landmark 1 and Landmark 2)
GPS	Degrees 41	Minutes 43	Seconds 16
	Latitude 87	Degrees 76	Minutes 28
GPS	Longitude 26	Seconds 89	
	TCD Functioning ☒ No Controls ☐ Device Functioning Improperly ☐ Emergency Preemptive Signal	Device Not Functioning	Device Functioning Properly
TCD	Yield Sign	Police Officer or Flagman	Other Type TCD
	Active RR Crossing Controls	Passive RR Crossing Controls	Unknown
Lane Closure	Lane Closed (If "Not Applicable", skip rest of the Lane Closure section) ☐ Not Applicable ☐ Partially ☒ Fully ☐ Unknown	Lane Closure Direction ☐ North ☐ East ☐ North and South ☐ All (N,S,E,W)	☐ South ☐ West ☒ East and West
	Traffic Detoured Yes ☒ No ☐ Unknown ☐	Esti. Time Closed ☐ < 30 Min. ☐ 30-60 Min. ☒ 1-3 hrs ☐ 3-6 hrs ☐ 6-9 hrs ☐ > 9 hours ☐ Unknown	

TA000102656

Unit Info	Type ☒ Motor Vehicle in Transport ☐ Hit & Run Vehicle ☐ Illegally Parked ☐ Legally Parked ☐ Non - Motorized Unit ☐ Pedestrian ☐ Pedestrian on Skates, in Wheelchair, etc ☐ Disabled From Previous Crash ☐ Train ☐ Phantom Vehicle <i>(If "Pedestrian" or "Pedestrian on Skates, in Wheelchair, etc", Complete Form M, Section 28)</i>						Commercial Vehicle ☐ Yes ☒ No <i>(If Yes, Complete Form C)</i>	
Vehicle Driver / Pedestrian Information	Unit No 01		First Name [REDACTED]		MI [REDACTED]	Date of Birth (MM-DD-YYYY) [REDACTED]		
	Delete? ☐					Telephone Number [REDACTED]		
	Address / City / State [REDACTED] TOWANDA, PA							Zip [REDACTED]
	Driver License Number [REDACTED]					State PA	Class C	
	Alcohol/Drugs Suspected ☒ No ☐ Alcohol ☐ Illegal Drugs ☐ Alcohol and Drugs ☐ Medication ☐ Unknown				Driver or Pedestrian Physical Condition ☒ Apparently Normal ☐ Had Been Drinking ☐ Illegal Drug Use ☐ Sick ☐ Fatigue ☐ Asleep ☐ Medication ☐ Unknown			
	Alcohol Test Type ☒ Test Not Given ☐ Blood ☐ Breath ☐ Urine ☐ Other ☐ Unknown if Test Given				Primary Vehicle Code Violation 3309 Charged? ☐ Yes ☒ No			
	Alcohol Test Results 0 ☐ Test Refused ☐ Test Given, Contaminated Results ☐ Unknown Results				Driver Presence 1 1=Driver Operated Vehicle 2=No Driver 3=Driver Fled Scene 4=Hit and Run 9=Unknown			
	Owner/Driver 00=Not Applicable 01=Private Vehicle Owned/Leased by Driver 02=Private Vehicle Not Owned/Leased by Driver 03=Rented Vehicle 04=State Police Vehicle 05=PENNDOT Vehicle 06=Other State Gov Veh 07=Municipal Police Veh 08=Other Municipal Government Vehicle 09=Federal Gov Veh 98=Other 99=Unknown 02							
	Vehicle Information	Same as Driver ☐		Owner First Name [REDACTED]		Owner Last Name or Business Name (If Pedestrian, skip this Section) MEMORIAL HOSPITAL		
Address / City / State / Zip ONE HOSPITAL DR., TOWANDA, PA, 18848					Vehicle Make CHEVROLET		*Make Code 20	
VIN 1G1AK5SF577		Model Year 2007		Vehicle Model COBALT			(see overlay)	
License Plate [REDACTED]		Reg. State PA	Est. Speed 055	Vehicle Towed ☒ Yes ☐ No			Towed By FULMER'S	
Insurance ☒ Yes ☐ No ☐ Un-known		Insurance Company VOLUNTEER FIREMEN'S		Policy No [REDACTED]				
Trailing Unit No. of Trailing Units: 0		Type [REDACTED]		1=Towing Pass. Veh 4=Mobile/Modular Home 7=Semi-Trailer 2=Towing Truck 5=Camper 8=Other 3=Towing Utility Trailer 6=Full Trailer 9=Unknown		Tag No [REDACTED] Tag Year [REDACTED] Tag St [REDACTED]		
Direction of Travel E		*Vehicle Position 01		*Movement 01		*See Overlay		
Vehicle Color 03 01=Blue 02=Red 03=White 04=Green 05=Black 06=Yellow 07=Silver 08=Gold 09=Brown 10=Orange 11=Purple 12=Other 99=Unknown		Vehicle Type 01 01=Automobile 02=Motorcycle 03=Bus 04=Small Truck <i>(If "02", Complete Form M, Section 26)</i> <i>(If "20" or "21", Complete Form M, Section 27)</i>		05=Large Truck 06=SUV 07=Van 10=Snowmobile 11=Farm Equip 12=Construction Equip 13=ATV 18=Other Type Spec Veh 19=Unk. Type Spec Veh 20=Unicycle, Bicycle, Tricycle 21=Other Pedalcycle 22=Horse & Buggy 23=Horse & Rider 24=Train 25=Trolley 98=Other 99=Unknown		Special Usage 00 00=Not Applicable 01=Fire Veh 02=Ambulance 03=Police 08=Other Emergency Vehicle 11=Pupil Transport 12=Commercial Passenger Carrier 13=Taxi 21=Tractor Trailer 22=Twin Trailer 23=Triple Trailer 31=Modified Veh 99=Unknown		
Initial Impact Point 03 00=Non-Collision 01-12=Clock Points 13=Top 14=Undercarriage 15=Towed Unit 99=Unknown		Damage Indicator 3 0=None 1=Minor 2=Functional 3=Disabling 9=Unknown		Gradient 1 1=Level 2=Uphill		3=Downhill 4=Bottom of Hill 5=Top of Hill 9=Unknown Road Alignment 1 1=Straight 2=Curved 9=Unknown		

POLICE CRASH REPORTING FORM

Page

POLICE CRASH REPORTING FORM

CRASH NUMBER

A 500 3

Police Use Only

PDS-0028:50

03

F 1327884

People Information

A Person Type:
1=Driver
2=Passenger
7=Pedestrian
8=Other
9=Unknown

B Sex:
F=Female
M=Male
U=Unknown

C Injury Severity:
0=Not Injured
1=Killed
2=Major Injury
3=Moderate Injury
4=Minor Injury
8=Injury, Unk Severity
9=Unknown If Injury

D Seat Position:
00=Not A Passenger/Occupant
01=Driver - All Vehicles
02=Front Seat Middle Position
03=Front Seat Right Side
04=Second Row - Left Side Or Motorcycle Passenger
05=Second Row - Middle Position
06=Second Row - Right Side
07=Third Row Or Greater - Left Side
08=Third Row Or Greater - Middle Position
09=Third Row Or Greater - Right Side
10=Sleeper Section of Truckcab
11=In Other Enclosed Passenger Or Cargo Area
12=In Open Area (Back Of Pickup, Etc.)
13=Trailing Unit
14=Riding On Vehicle Exterior
15=Bus Passenger
98=Other
99=Unknown

E Safety Equipment One:
00=None Used / Not Applicable
01=Shoulder Belt Used
02=Lap Belt Used
03=Lap And Shoulder Belt Used
04=Child Safety Seat Used
05=Motorcycle Helmet Used
06=Bicycle Helmet Used
10=Safety Belt Used Improperly
11=Child Safety Seat Used Improperly
12=Helmet Used Improperly
90=Restraint Used, Type Unknown
99=Unknown

F Safety Equipment Two:
00=None Used / Not Applicable
01=Front Air Bag Deployed (For This Seat)
02=Side Air Bag Deployed (For This Seat)
03=Other Type Air Bag Deployed
04=Multiple Air Bags Deployed
05=Motorcycle Eye Protection
06=Bicyclist Wearing Elbow/Knee/Pads
10=Air Bag Not Deployed, Switch On
11=Air Bag Not Deployed, Switch Off
12=Air Bag Not Deployed, Unk Switch Setting
13=Air Bag Removed (Prior To Crash)
19=Unknown If Air Bag Deployed
99=Unknown

G Ejection:
0=Not Applicable
1=Not Ejected
2=Totally Ejected
3=Partially Ejected
9=Unknown

H Ejection Path:
0=Not Ejected / Not Applicable
1=Through Side Door Opening
2=Through Side Window
3=Through Windshield
4=Through Back Door
5=Through Back Door Tailgate Opening
6=Through Roof Opening (Sunroof/Convertible Top Down)
7=Through Roof Opening (Convertible Top Up)
9=Unknown

I Extrication:
0=Not Applicable
1=Not Extricated
2=Extricated By Mechanical Means
3=Freely By Non - Mechanical Means
8=Other
9=Unknown

EMS Agency: TOWANDA

Medical Facility: ROBERT PACKER

Unit No	Person No	Delete?	Date of Birth (MM-DD-YYYY)	A	B	C	D	E	F	G	H	I	
01	01	☐	01-01-01	1	F	1	0	1	0	3	1	0	2

Name / Address / Phone

☒ Same as Operator

EMS Transport

☒ Yes ☐ No

Unit No	Person No	Delete?	Date of Birth (MM-DD-YYYY)	A	B	C	D	E	F	G	H	I
		☐										

Name / Address / Phone

☐ Same as Operator

EMS Transport

☐ Yes ☐ No

Unit No	Person No	Delete?	Date of Birth (MM-DD-YYYY)	A	B	C	D	E	F	G	H	I
		☐										

Name / Address / Phone

☐ Same as Operator

EMS Transport

☐ Yes ☐ No

Unit No	Person No	Delete?	Date of Birth (MM-DD-YYYY)	A	B	C	D	E	F	G	H	I
		☐										

Name / Address / Phone

☐ Same as Operator

EMS Transport

☐ Yes ☐ No

Unit No	Person No	Delete?	Date of Birth (MM-DD-YYYY)	A	B	C	D	E	F	G	H	I
		☐										

Name / Address / Phone

☐ Same as Operator

EMS Transport

☐ Yes ☐ No

Unit No	Person No	Delete?	Date of Birth (MM-DD-YYYY)	A	B	C	D	E	F	G	H	I
		☐										

Name / Address / Phone

☐ Same as Operator

EMS Transport

☐ Yes ☐ No

500 4

Police Use Only

POS-0 0280 105

04

P 1327884

General Crash Information (Of more than 2 units only complete once)	Crash Description	7	0=Non-Collision 1=Rear End	2=Head On 3=Rear to Rear (Backing)	4=Angle 5=Slideswipe (Same Direction)	6=Slideswipe (Opposite Direction) 7=Hit Fixed Object	8=Hit Pedestrian 9=Other/Unknown
	Relation to Roadway	4	1=On Travel Lanes 2=Shoulder	3=Median 4=Roadside	5=Outside Trafficway 6=In Parking Lane	7=Gore (Ramp Intersection) 9=Unknown	
	Illumination	1	1=Daylight 2=Dark - No Street Lights	3=Dark - Street Lights 4=Dusk	5=Dawn 6=Dark - Unknown Roadway Lighting	8=Other	
	Weather Conditions	1	1=No Adverse Conditions 2=Rain	3=Sleet (Hail) 4=Snow	5=Fog 6=Rain & Fog	7=Sleet & Fog 8=Other	9=Unknown
	Road Surface Conditions	0	0=Dry 1=Wet	2=Sand, Mud, Dirt, Oil 3=Snow Covered	4=Slush 5=Ice	6=Ice Patches 7=Water - Standing or Moving	8=Other

Unit(s) Event Information	Harm Event L/R Most? Utility Pole Number				Harmful Events (Harm Event)	
	Unit No	1	2	3	4	01=Hit Unit 1 02=Hit Unit 2 03=Hit Unit 3 04=Hit Unit 4 05=Hit Unit 5 06=Hit Other Traffic Unit 07=Hit Deer 08=Hit Other Animal 09=Collision With Other Non Fixed Object 11=Struck By Unit 1 12=Struck By Unit 2 13=Struck By Unit 3 14=Struck By Unit 4 15=Struck By Unit 5 16=Struck By Other Traffic Unit 21=Hit Tree Or Shrubbery 22=Hit Embankment 23=Hit Utility Pole 24=Hit Traffic Sign 25=Hit Guard Rail 26=Hit Guard Rail End 27=Hit Curb 28=Hit Concrete Or Longitudinal Barrier 29=Hit Ditch
	01	2	9	4		30=Hit Fence Or Wall 31=Hit Building 32=Hit Culvert 33=Hit Bridge Pier Or Abutment 34=Hit Parapet End 35=Hit Bridge Rail 36=Hit Boulder Or Obstacle On Roadway 37=Hit Impact Attenuator 38=Hit Fire Hydrant 39=Hit Roadway Equipment 40=Hit Mail Box 41=Hit Traffic Island 42=Hit Snow Bank 43=Hit Temporary Construction Barrier 48=Hit Other Fixed Object 49=Hit Unknown Fixed Object 50=Overturn/Roll Over 51=Struck By Thrown Or Falling Object 52=Pot Holes Or Other Pavement Irregularities 53=Jackknife 54=Fire In Vehicle 58=Other Non-Collision 99=Unknown Harmful Event
	Please Put Events in Sequential Order	3				

Unit(s) Event Information	Harm Event L/R Most? Utility Pole Number				Harmful Events (Harm Event)	
	Unit No	1	2	3	4	
	Please Put Events in Sequential Order	3				

Contributing Information	First Harmful Event in the Crash	Unit No	Harm Event	Most Harmful Event in the Crash	Unit No	Harm Event
	01	2	3	01	2	3
	Do not repeat this information on multiple pages					
	Environmental / Roadway Potential Factors (E/R) 00=None 01=Windy Conditions 02=Sudden Weather Conditions 03=Other Weather Conditions 04=Deer In Roadway 05=Obstacle On Roadway 06=Other Animal In Roadway 07=Glare 08=Work Zone Related 11=Slippery Road Conditions (Ice/Snow) 12=Substance On Roadway 13=Potholes 14=Broken Or Cracked Pavement 15=ICD Obstructed 16=Soft Shoulder Or Shoulder Drop Off 28=Other Roadway Factor 29=Other Environmental Factor 99=Unknown					

Contributing Information	Possible Vehicle Failures (V)				Driver Action (D)			
	00=None 01=Tires 02=Brake System 03=Steering System 04=Suspension 05=Power Train	06=Exhaust 07=Headlights 08=Signal Lights 09=Other Lights 10=Horn 11=Mirrors	12=Wipers 13=Driver Seating/Control 14=Body, Doors, Hood, Etc 15=Trailer Hitch 16=Wheels 17=Airbags 18=Trailer Overloaded 19=Unsecure/Shifted Trailer Load 20=Improper Towing 21=Obstructed Windshield 99=Unknown	00=No Contributing Action 01=Driver Was Distracted 02=Driving Using Hand Held Phone 03=Driving Using Hands Free Phone 04=Making Illegal U-Turn 05=Improper/Careless Turning 06=Turning From Wrong Lane 07=Proceeding W/O Clearance After Stop 08=Running Stop Sign 09=Running Red Light 10=Failure To Respond To Other Traffic Control Device 11=Tailgating 12=Sudden Slowing/Stopping 13=Illegally Stopped On Road 14=Careless Passing Or Lane Change 15=Passing In No Passing Zone 16=Driving The Wrong Way On 1-Way Street	17=Careless Or Illegal Backing On Roadway 18=Driving On The Wrong Side Of Road 19=Making Improper Entrance To Highway 20=Making Improper Exit From Highway 21=Careless Parking/Unparking 22=Over/Under Compensation At Curve 23=Speeding 24=Driving Too Fast For Conditions 25=Failure To Maintain Proper Speed 26=Driver Fleeing Police (Pol Chase) 27=Driver Inexperienced 28=Failure To Use Specialized Equip 92=Affected By Physical Condition 98=Other Improper Driving Actions 99=Unknown			
	Unit No	01	1	00	2			
	Unit No		1		2		3	4

Contributing Information	Indicated Prime Factor				Pedestrian Action (P)			
	00=None 01=Entering Or Crossing At Specified Location 02=Walking, Running, Jogging, Or Playing	03=Working 04=Pushing Vehicle 05=Approaching Or Leaving Vehicle 06=Working On Vehicle 07=Standing 98=Other 99=Unknown	Unit No	01	2	4		
	E/R V D P							
	Unit No							

POLICE CRASH REPORTING FORM

A 500 5

Police Use Only

PD5-0628265

Page

05

1327884

1327884

WITHIN MONROETON BORO.

Diagram



NORTH

IMPACT IN DITCH

FINAL REST

INITIAL IMPACT

UTILITY POLE

ONE WAY

STOP SIGN

SR 414 - 45 MPH

YAW MARKS

★ IMPACT POINT

NOT TO SCALE

Witness Name

Address

Phone

1

TOWANDA, PA

2

Narrative and additional witnesses:

Accident Investigation Notification Issued? ☒

Property Damage ☐

SEE ATTACHED PAGES.

Witness and Narrative

COMMONWEALTH OF PENNSYLVANIA
POLICE CRASH REPORTING FORM

FF

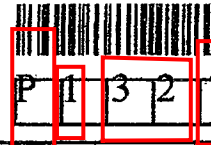
AA 500 N

Police Use Only P05-0628265

Page 06

☒ New

☐ Change/
Continuation



Crash Number

P 1 3 2 7 8 8 4

Narrative and additional witnesses: This crash occurred as Unit #1 was traveling East on the Eastbound lane of SR 414. For an unknown reason Unit #1 traveled across the center line of SR 414. Unit #1 impacted a utility pole with the passenger side front door of Unit #1, on the berm of the Westbound travel lane and came to final rest impacting a ditch facing North on the berm of the Westbound travel lane of SR 414.

Upon my arrival to the scene, Unit #1 was as previously described. There were tire marks which measured approx. (90' Right Rear Tire, 107' Right Front Tire, 57.5' Left Rear Tire, 71' Left Front Tire), on the Eastbound lane crossing over the center line and the Westbound lane of SR 414. Due to EMS and fire department personal arriving on scene and traveling over the scene, some physical evidence was lost. Nothing else was observed.

Upon my arrival I attempted to interview Operator #1, but Operator #1 was unconscious and could not relate any information of the crash. I confirmed Operator #1's identity by use of her driver's license and placed Operator #1 driver's license with Operator #1 for transport to Robert Packer Hospital via Guthrie Helicopter.

On 12/04/07 at about 1520 hours, Witness #1 was interviewed near the scene and related he was standing in a parking lot on the Northbound side of SR 220 when he heard tires squealing. Witness #1 then looked in the direction of the squealing tires and observed Unit #1 crash into a utility pole with the passenger side front door. Witness #1 related he did not observe any other vehicles that would have contributed to the crash. Nothing else was related.

On 12/04/07 at about 1539 hours, Cheryl (NMN) KEENEY, (Towanda Memorial Hospital Staff), arrived at the scene and took possession of hospital equipment Operator #1 was transporting which consisted of blood, a laptop computer, and other miscellaneous items.

On 12/04/07 at about 1620 hours I arrived at Robert Packer Hospital and interviewed Wayne (NMN) MASHAS, (Chief of Trauma), and MASHAS related Operator #1 had a fractured skull, a puncture wound behind her right ear, and was in critical condition. Nothing else was related.

(CONTINUED)

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POLICE CRASH REPORTING FORM

AA 500 N

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P05-0628265

Page

07

☒ New

☐ Change/
Continuation



Crash Number

P 1 3 2 7 8 8 4

22

Auxiliary Witness and Narrative

Narrative and additional witnesses: On 12/04/07 I transferred possession of Operator #1's personal belongings and SP7-0015 to her son, [REDACTED] Towanda, PA, [REDACTED] at Robert Packer Hospital. I explained the details of the crash and provided him with contact information for PSP Towanda Station. [REDACTED] related he would explain everything to Operator #1's husband, [REDACTED] (same address and phone number as Operator #1), because [REDACTED] was in a very emotional state. Nothing else was related.

On 12/12/07 at about 1718 hours PSP Towanda station was notified by Gordon E. FARR, (Coroner of Bradford County), that on 12/12/07 at about 1445 hours, Operator #1 died at Robert Packer Hospital from injuries sustained from the crash.

Assisted at the scene by:

1. North Towanda Fire Department.
2. Towanda Memorial EMS.
3. Fulmer's Towing.

SP7-0015's were issued to Operator #1's son in care for Operator #1 at Robert Packer Hospital, Towanda Memorial Hospital, and PENNDOT.

News Release prepared and attached to this report.

INET entry submitted on 12/20/07 at about 0800 hours.

This report will be supplemented by Cpl. Kenneth J. MARTIN, C.A.R.S.

POLICE COPY

000 1

Case Closed

☒ Yes ☐ No

Reportable Crash

☒ Yes ☐ No

Page

09

☐ Change/
Continuation

P1327884

Police Agency Data	Incident Number P05-0628150										Police Agency PA STATE POLICE										Patrol Zone TOWANDA/3250																																																
	Agency Name PA STATE POLICE										Precinct TOWANDA/3250										Investigation Date (MM-DD-YYYY) 01-21-2008																																																
Crash Data	Dispatch Time (mil)					Arrival Time (mil)					Investigator CPC. KENNETH J. MARTIN 5168										Badge Number																																																
	Reviewer										Badge Number										Approval Date (MM-DD-YYYY) 01-21-2008																																																
Loc Type	County										County Name										Municipality										Municipality Name										Day of Week ☐ Sun ☐ Th ☐ Mon ☐ Fri ☐ Tue ☐ Sat ☐ Wed ☐ Un																												
	Crash Date (MM-DD-YYYY)										Crash Time (mil)										No of Units										People										Injured										Killed*										*(If > 00, Complete Form F)								
Principal Road	Workzone (If Yes, Complete Form M, Section 29) ☐ Yes ☐ No										School Bus Related ☐ Yes ☐ No										School Zone Related ☐ Yes ☐ No										Notify PENNDOT Maintenance ☐ Yes ☐ No																																						
	Intersection Type ☐ Midblock ☐ 4 Way Intersection ☐ "Y" Intersection ☐ Multi-Leg Intersection ☐ Off Ramp ☐ Railroad Crossing ☐ "T" Intersection ☐ Traffic Circle/Round About ☐ On Ramp ☐ Crossover ☐ Other										*Special Location										*See Overlay																																																
Intersecting Road	Route Number										Segment (Optional)										Travel Lanes										Speed Limit										Orientation ☐ North ☐ South ☐ East ☐ West ☐ Unknown										House Number (if applicable)																		
	Street Name										Street Ending										Route Signing ☐ Interstate (Not Turnpike) ☐ Turnpike (East/West) ☐ Turnpike Spur ☐ State Highway ☐ County Road ☐ Local Road or Street ☐ Private Road ☐ Other/Unknown										For Mid-block crashes only, use postal House Number and make sure Principal Roadway Street Name is filled in if using this option																																						
Distance From Landmark	Route Number										Segment (Optional)										Travel Lanes										Speed Limit										Orientation ☐ North ☐ South ☐ East ☐ West ☐ Unknown										Route Signing ☐ Interstate (Not Turnpike) ☐ Turnpike (East/West) ☐ Turnpike Spur ☐ State Highway ☐ County Road ☐ Local Road or Street ☐ Private Road ☐ Other/Unknown																		
	Intersecting Rt Num Or Mile Post										Or Segment Marker										St Ending										Ramp Use Only ☐ North ☐ South ☐ East ☐ West										Feet																												
GPS	Or Intersecting Street Name										St Ending										Ramp Use Only ☐ North ☐ South ☐ East ☐ West										Or Miles																																						
	Intersecting Rt Num Or Mile Post										Or Segment Marker										St Ending										Ramp Use Only ☐ North ☐ South ☐ East ☐ West										Distance From Crash Scene to Landmark 1 (For Crash between Landmark 1 and Landmark 2)																												
TCD	Please Enter Information for BOTH Landmarks if Using This Option										Landmark 1										Landmark 2										Distance From Crash Scene to Landmark 1 (For Crash between Landmark 1 and Landmark 2)																																						
	Degrees Minutes Seconds										Degrees Minutes Seconds										Degrees Minutes Seconds										Degrees Minutes Seconds																																						
Lane Closure	Traffic Control Device ☐ Not Applicable ☐ Traffic Signal ☐ Yield Sign ☐ Active RR Crossing Controls ☐ Police Officer or Flagman ☐ Other Type TCD ☐ Flashing Traffic Signal ☐ Stop Sign ☐ Passive RR Crossing Controls ☐ Unknown										TCD Functioning ☐ No Controls ☐ Device Functioning Improperly ☐ Device Not Functioning ☐ Device Functioning Properly										Emergency Preemptive Signal ☐ Unknown																																																
	Lane Closed (If "Not Applicable", skip rest of the Lane Closure section) ☐ Not Applicable ☐ Partially ☐ Fully ☐ Unknown										Lane Closure Direction ☐ North ☐ East ☐ North and South ☐ All (N,S,E,W) ☐ South ☐ West ☐ East and West										Traffic Detoured Yes ☐ No ☐ Unknown										Esti Time Closed ☐ < 30 Min. ☐ 30-60 Min. ☐ 1-3 hrs ☐ 3-6 hrs ☐ 6-9 hrs ☐ > 9 hours ☐ Unknown																																						

POLICE CRASH REPORTING FORM

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Police Use Only

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Narrative and additional witnesses:

THIS OFFICER, A MEMBER OF THE TROOP P. C.A.R.S. UNIT WAS REQUESTED TO ASSIST IN THIS INVESTIGATION. THIS OFFICER WAS ABLE TO CALCULATE AN APPROXIMATE TRAVEL ^{SPEED} FOR UNIT #1 AND WAS ABLE TO DOWNLOAD THE SDN FROM THE UNIT. REFER TO THE GENERAL INVESTIGATION REPORT OF THE SAME NUMBER FOR DETAILS.

Auxiliary Witness and Narrative